

Before the Federal Maritime Commission

Complaint

Tarik Afif Chaouch v. Demetrios Air Freight Co., Demetrios International Shipping Co., Inc. and Troy Container Line LTD.



- I. The complainant is Tarik Afif Chaouch, whose address is 9 Medford St., Apt #214, Somerville, MA 02143 and email address is tarisamo@hotmail.com
- II. The respondents are Demetrios Air Freight Co. and Demetrios International Shipping Co., Inc., both located at 215 Salem St., Woburn, MA 01801 with an email address of evans@intlshipping.com, and Troy Container Line LTD, whose address is 27 West Street, Red Bank, NJ 07701 and email address is sopal@troylines.com.
- III. This matter arises out of the shipping of goods by water governed by the Shipping Act of 1984 (46 U.S.C. § 40101-41309.) The commission may hear this matter by the authority granted in 46 U.S.C. Chapter 411 and 46 CFR §550.402.
- IV.
 - A. The complainant hired respondents to ship two (2) 2014 Ford Mustangs with a destination of Algiers, Algeria on board the MSC LAURA.
 - B. The MSC LAURA with the two (2) Ford Mustangs on board arrived in Algiers, Algeria on November 3, 2014.
- V. That by reason of the facts and foregoing paragraphs, complainant has been (and is being) subject to injury as a direct result of the violations by respondent of sections 46 U.S.C. code §41104 and more specifically paragraphs 4 and 5.
- VI.
 - A. The complainant shipped two (2) 2014 Ford Mustangs. Either Demetrios Air Freight Co., Demetrios International Shipping Co., Inc. or Troy Container Line LTD put both Mustangs on one bill of lading. (See Exhibit A.) Both vehicles were in a single container and not supposed to be on one bill of lading. As a result of this mistake, the vehicles were impounded in Algiers, Algeria for approximately four (4) months because of the bill of lading mistake. During this period, the complainant was caused to expend significant money to fix the bill of lading and pay fees and costs for storage.
 - B. Complainant paid 1,153,112.00 dinar which corresponds to \$21,086.70 US Dollars (See Exhibit B.) The complainant would not have been responsible for these costs if the 2014 Ford Mustangs were not placed on the same bill of lading.
- VII. Wherefore complainant prays that respondent be required to answer the charges herein; that after due hearing, an order be made commanding said respondent (and each of them): to cease and desist from the aforesaid violations of said act(s); to establish and put in force such practices as the Commission determines to be lawful and reasonable; to pay to said complainant by way of reparations for the unlawful conduct hereinabove described the sum of \$21,086.70, with interest and attorney's fees or such other sum as to the Commission may determine to be proper as an award for reparation; and that such other and further order of orders be made as the Commission determines to be proper in the

premises. The complainant tried for over a month to have two bills of lading for each vehicle and finally on December 31, 2014, the bill of ladings were split. (See Exhibit C.)

Dated at Boston, this 15th day of May , 2017

By the claimant,



TARIK AFIF CHAOCH



Brian Keane, BBO #656717
Keane Law Group, P.C.
110 K Street, Suite 330
Boston, MA 02127
617-313-2900
bkeane@keanelawgroup.com

NOTARIZATION

In MA (State), County of Suffolk

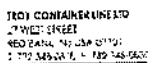
On the 15th day of May, 2017, before me personally came Tarik Afif Chaoch known to me, and known to me to be the individual described in and who executed the written document and duly acknowledged to me that he executed the same.



NOTARY PUBLIC

EXHIBT

A



SHIPPER/EXPORTER (COMPLETE NAME AND ADDRESS) DEMETRIOS AIR FREIGHT CO 215 SALEM ST WOBURN, MASS 01801 TEL: 781-305-2710 FAX: 781-305-2711		1417	BOOKING NO. 038CHS1170655	BILL OF LADING NO. 1221988
CONSIGNEE (NOT NEGOTIABLE UNLESS CONSIGNED TO ORDER) SOFIAN AFIF CHAOUCH CITE 252 LOGTS BT17A2 ISSER BOUMERDES TEL: 213-551812173			EXPORT REFERENCES 356120	
NOTIFY PARTY (COMPLETE NAME AND ADDRESS) SAME AS CONSIGNEE			FORWARDING AGENT, F.M.C. NO.	
			POINT AND COUNTRY OF ORIGIN OF GOODS	
			FOR DELIVERY PLEASE APPLY TO sarl Mediterranean Shipping Company Algeria Cooperative En-nahar No. 11 Les Sources - Bir Mourad Rais 16050 ALGER, ALGERIA Phone +213 21 563 531 Fax +213 21 561 535 Email infoalger@msc.alg.com.dz	
PRE-CARRIAGE BY	PLACE OF RECEIPT BY PRE-CARRIER		(005363 NC)	D29 [F]
EXPORT CARRIER (VESSEL/VOY/FLAG) MSC LAURA V. MU439R	PORT OF LOADING BOSTON		LOADING PIER TERMINAL	
PORT OF DISCHARGE ALGIERS, ALGERIA	PLACE OF DELIVERY BY ON CARRIER		NUMBER OF ORIGINALS THREE (3)	

PARTICULARS FURNISHED BY SHIPPER				
MRKS & NOS/CONTAINER NOS	NO. OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	MEASUREMENT
CONTAINER # CAXU962627-8 SEAL # UL-8517422	1	40' HC CONTAINER STC; AUTOMOBILE FORD MUSTANG P8A, COUPE YEAR 2014 VIN: 1ZVBP8AM0E5317935 SHIPMENT REFERENCE NUMBER: 038CHS1170655A AES ITN#: X20140915402522 AUTOMOBILE FORD MUSTAN P8A COUPE, YEAR 2014 VIN: 1ZVBP8AMXE5317960 SHIPMENT REFERENCE NUMBER: 038CHS1170655B HS CODE: 8703230090 "SHIPPER'S LOAD, STOW AND COUNT" CSC/DTHC/DDC COLLECT FOR ACCOUNT OF CONSIGNEE IF NOT SHOWN PREPAID ON THIS HBL	3417 LB 1550.00 KG 3417 LB 1550.00 KG	
ADDR				
OCEAN FREIGHT PREPAID				

****NON-NEGOTIABLE****

These commodities, technology, or software were exported from the United States in accordance with the Export Administration Regulations. Diversion contrary to U.S. law prohibited.

SHIPPER'S DECLARED VALUE \$				
SUBJECT TO EXTRA FREIGHT AS PER TARIFF AND CLAUSE 6(4)(B) H.C. OF THIS B/L				
FREIGHT AND CHARGES	BASIS	RATE	PREPAID	COLLECT
RECEIVED by the Carrier the Goods as specified above in apparent good order and condition unless otherwise stated, to be transported to such place as agreed, authorized or permitted herein			TOTAL	TOTAL

RECEIVED by the Carrier the Goods as specified above in apparent good order and condition unless otherwise stated, to be transported to such place as agreed, authorized or permitted herein and subject to all the terms and conditions appearing on the front and reverse of this Bill of Lading to which Merchant agrees by accepting this Bill of Lading, and local privileges and customs notwithstanding. The particulars given above as stated by the shipper and the weight, measure, quantity, condition, contents and value of the Goods are unknown to the Carrier. IN WITNESS whereof three (3) original Bills of Lading have been signed if otherwise not stated above, the same being surrendered duly endorsed in exchange for the Goods or delivery order.
Signed on behalf of the Carrier.

DATED **BOSTON** ON **10/1/2014**
AT _____ BY _____

EXHIBIT

B

Invoice 2014

REP N°

DESIGNATION	DEBOURS	PRESTATION
MANDAT	DZD 5,000.00	
VISITE DCP QUALITE	DZD -	
PROGRAMATION VISITE DCP	DZD -	
FRAIS DE MAGASINAGE GARDINAGE COMPLIMENT	DZD -	
FRAIS DE MAGASINAGE GARDINAGE ENTREPOT	DZD 35,000.00	
Transfert DSTR	DZD -	
LIQUIDATION DSTR	DZD -	
QUITTACE douane compliment	DZD -	
MAIN LEVEE DOUANE	DZD -	
PV D EXPERTISE	DZD 20,000.00	
SURSTARIES	DZD -	
COMPLIMENT RESTITUTION TC	DZD 8,658.00	ABD
HONORAIERS	DZD 50,000.00	-
COMMISSION DE TRANSIT	DZD 50,000.00	-
OUVERTURE DOSSIER	DZD 5,000.00	-
VISITE DOUANE	DZD 10,000.00	-
AUTRE FRAIS DSTR	DZD -	
FRAIT DE COMPANIE	DZD 35,000.00	ABD
MANUTENTION	DZD 16,072.00	
FRAIS DIVERES	DZD -	
TRANSPORT	DZD 30,000.00	
MANTANT HORS TAXE		-
TOTALE A PAYER DA	DZD 264,730.00	-

Value in US \$
\$ 58.82
\$ -
\$ -
\$ -
\$ 411.76
\$ -
\$ -
\$ -
\$ 235.29
\$ -
\$ 101.86
\$ 588.24
\$ 588.24
\$ 58.82
\$ 117.65
\$ -
\$ 411.76
\$ 189.08
\$ -
\$ 352.94
\$ 3,114.47

Invoice 2015

REP N°

DESIGNATION	DEBOURS	PRESTATION
MANDAT	DZD 5,000.00	
VISITE DCP QUALITE	DZD -	
PROGRAMATION VISITE DCP	DZD -	
FRAIS DE MAGASINAGE GARDINAGE COMPLIMENT	DZD 15,953.00	
FRAIS DE MAGASINAGE GARDINAGE ENTREPOT	DZD 274,046.00	
Transfert DSTR	DZD -	
LIQUIDATION DSTR	DZD -	
QUITTACE douane compliment	DZD -	
MAIN LEVEE DOUANE	DZD 100,000.00	
PV D EXPERTISE	DZD 50,000.00	
SURSTARIES	DZD 385,383.00	
COMPLIMENT RESTITUTION TC	DZD 8,658.00	ABD
HONORAIERS	DZD 100,000.00	-
COMMISSION DE TRANSIT	DZD 100,000.00	-
OUVERTURE DOSSIER	DZD 5,000.00	-
VISITE DOUANE	DZD 10,000.00	-
AUTRE FRAIS DSTR	DZD -	
FRAIT DE COMPANIE	DZD 35,000.00	ABD
MANUTENTION	DZD 16,072.00	
FRAIS DIVERES	DZD 18,000.00	
TRANSPORT	DZD 30,000.00	
MANTANT HORS TAXE		-
TOTALE A PAYER DA	DZD 1,153,112.00	-

Value in US \$
\$ 58.82
\$ -
\$ -
\$ 187.68
\$ 3,224.07
\$ -
\$ -
\$ -
\$ 1,176.47
\$ 588.24
\$ 4,533.92
\$ 101.86
\$ 1,176.47
\$ 1,176.47
\$ 58.82
\$ 117.65
\$ -
\$ 411.76
\$ 189.08
\$ 211.76
\$ 352.94
\$ 13,565.02

EXPENSES

DESIGNATION	PRICE
Car Rental Algeria	\$ 4,955.29
Car Rental Boston	\$ 584.49
Flight ticket	\$ 1,600.00
Communication	\$ 380.90
TOTAL	\$ 7,520.68

EXHIBIT

C

m sc MEDITERRANEAN SHIPPING COMPANY S.A. Website: www.mscedshlpc.com SCAC Code : MSCU		SEA WAYBILL No. MSCUBT745995 NOT NEGOTIABLE - COPY NO. & SEQUENCE OF SEA WAYBILLS 0 Of Zero NO. OF RIDER PAGES 0	
SHIPPER: TROY CONTAINER LINE, LTD. (NYOCC) 27 WEST STREET RED BANK, N.J. 07701 REF #: 358120		FORWARDING AGENT :	
CONSIGNEE: NABILA AFIF CHAOUCH CITE 252 LOGEMENTS BT 17 A2 ISSER, 35230 PHONE: +213 (0) 797 135 481		CARRIER'S AGENTS ENDORSEMENTS: (Include Agent(s) at POD) LLOYDS/NO NUMBER 822655 FREE OUT / EMPTY CONTAINER RETURN FOR RECEIVERS ACCOUNT CARGO IN TRANSIT TO... FREE DAYS AND DEMURRAGE: FREE DAYS: 15 DAYS FREE TIME DEMURRAGE: FROM 16TH DAY TILL 32ND DAY USD 18/20'DY - USD 32/40'DY - USD 20/20' SPECIAL EQUIPMENT (OPEN TOP, FLAT RACK, PLATFORM, TANK) - USD 14/40' SPECIAL EQUIPMENT (OPEN TOP, FLAT RACK, PLATFORM, TANK) FROM 33RD DAY DEMURRAGE: USD 32/20'DY - USD 14/40'DY - USD 40/40' SPECIAL EQUIPMENT (OPEN TOP, FLAT RACK, PLATFORM, TANK) - USD 10/40' SPECIAL EQUIPMENT (OPEN TOP, FLAT RACK, PLATFORM, TANK) (CONTINUED IN THE DESCRIPTION SECTION)	
NOTIFY PARTIES: (No responsibility shall attach to the Carrier or to his Agent for failure to notify - see Clause 20) CHAOUCH CITE 252 LOGIS BT17A2 ISSER BOUMERDES TEL: 213-351812173			
VESSEL & VOYAGE NO. (see Clauses 8 & 9) MSC LAURA - MU439R		PORT OF LOADING BOSTON, MA	
BOOKING REF. 038CHS1170655		SERVICE CONTRACT NUMBER 14-029WV	
PORT OF DISCHARGE ALGER, ALGERIA		PLACE OF RECEIPT: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXX	
PLACE OF DELIVERY: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXX		PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE - See Clause 14	
Container Numbers, Seal Numbers and Marks CAYU8626278 40' HIGH CUBE SEAL NUMBER JUL8517422		Description of Packages and Goods (Continued on attached Sea Waybill Rider page(s), if applicable) continued from Carrier's Agent Endorsements Reusers containers: 3 days free time (from blugging date) Demurrage: From 4th day till 15th day USD 58 / 20'RE - USD 110 / 40'RE - From 16th day onwards USD 110 / 20'RE - USD 230 / 40'RE - 1 UNPACKED OR UNPACKAGED OF AUTOMOBILE FORD MUSTAN P8A COUPE, YEAR 2014 VIN: 1ZVBP8AMXE6317960 AES ITN#: X20140915403096 HS CODE: 8703230090 FREIGHT PREPAID / LADEN ON BOARD CSC/DTHC COLLECT SHIPPERS LOAD, STOW, AND COUNT SATISFIED HAS BEEN DISCONNECTED AND GAS TANK DRAINED X20140915402522 TOTAL NUMBER OF PACKAGES: 1	
Gross Cargo Weight 1,550,000 KGS. 3,417.165 LBS.		Measurement 1,550,000 KGS 3,417.165 LBS	
FREIGHT & CHARGES: Cargo shall not be delivered unless Freight & charges are paid (see Clause 15). RECEIVED by the Carrier from the Shipper in apparent good order and condition unless otherwise stated herein the total number or quantity of containers or other packages or units indicated in box entitled "Carrier's Receipt" for carriage subject to all the terms hereof from the Place of Receipt or the Port of Loading, to the Port of Discharge or Place of Delivery, whichever is applicable. IN ACCEPTING THIS SEA WAYBILL THE SHIPPER EXPRESSLY ACCEPTS AND AGREES TO, ON HIS OWN BEHALF AND ON BEHALF OF THE CONSIGNEE, THE OWNER OF GOODS AND THE MERCHANT, AND WARRANTS HE HAS AUTHORITY TO DO SO, ALL THE TERMS AND CONDITIONS WHETHER PRINTED, STAMPED OR OTHERWISE INCORPORATED ON THIS AND ON THE REVERSE SIDE AND TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF AS IF THEY WERE ALL SIGNED BY THE SHIPPER. Unless instructed otherwise in writing by the Shipper delivery of the Goods will be made only to the Consignee or his authorized representative. This Sea Waybill is not a document of title to the Goods and delivery will be made, after payment of any outstanding Freight and charges, only on provision of proper proof of identity and of authorization at the Port of Discharge or Place of Delivery, as appropriate, without the need to produce or surrender a copy of this Sea Waybill. IN WITNESS WHEREOF the Carrier, Master or their Agent has signed this Sea Waybill.			
DECLARED VALUE (only applicable if Ad Valorem Charges paid - see Clause 7.3) XXXXXXXXXXXXXXXX		CARRIER'S RECEIPT (No. of Conts or Pkgs rvd by Carrier - see Clause 14.1) 1 cntr	
PLACE AND DATE OF ISSUE NEW YORK - 30-SEPTEMBER-2014		SHIPPED ON BOARD DATE 30-SEPTEMBER-2014	
SIGNED By MSC (USA) Inc. as Agent on behalf of the Carrier MSC Mediterranean Shipping Company S.A.		TERMS CONTINUED ON REVERSE J	

 MEDITERRANEAN SHIPPING COMPANY S.A. Website: www.mscmedshlpco.com		SEA WAYBILL No. MSCUBT765738 NOT NEGOTIABLE - COPY	
SHIPPER: TROY CONTAINER LINE, LTD. (INVOIC) 27 WEST STREET RED BANK, N.J. 07701 REF #: 350120		NO. & SEQUENCE OF SEA WAYBILLS 0 Of Zero	
CONSIGNEE: TARIK ARI CHAOUCH CITE 252 LOGEMENTS ST 17 A2 ISSER, 35230 PHONE: +213 (0) 651 81 21 73		NO. OF RIDER PAGES 0	
NOTIFY PARTIES: (No responsibility shall attach to the Carrier or to his Agent for failure to notify - see Clause 20) TARIK ARI CHAOUCH CITE 252 LOGEMENTS ST 17 A2 ISSER, 35230 PHONE: +213 (0) 651 81 21 73		FORWARDING AGENT: CARRIER'S AGENTS ENDORSEMENTS: (Include Agent(s) at POD) LLOYD'S NUMBER: 922448 FREE OUT: EMPTY CONTAINER RETURN FOR RECEIVERS ACCOUNT CARGO IN TRANSIT TO: FREE DAYS AND DEMURRAGE: FREE DAYS: 15 DAYS FREE TIME DEMURRAGE: FROM 18TH DAY TILL 22ND DAY USD 18/25/27 - USD 22/40/42 - USD 20/27 SPECIAL EQUIPMENT (OPEN TOP, FLAT RACK, PLATFORM, TANK) - USD 21/40 SPECIAL EQUIPMENT (OPEN TOP, FLAT RACK, PLATFORM, TANK) FROM 23RD DAY ONWARDS: USD 12/20/20 - USD 24/40/42 - USD 40/27 SPECIAL EQUIPMENT (OPEN TOP, FLAT RACK, PLATFORM, TANK) USD 40/40 SPECIAL EQUIPMENT (OPEN TOP, FLAT RACK, PLATFORM, TANK) (CONTINUED IN THE DESCRIPTION SECTION)	
VESSEL & VOYAGE NO. (see Clauses 8 & 9) MSC LAURA - MU439R		PLACE OF RECEIPT: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXX	
BOOKING REF. 038CHS1170655		PLACE OF DELIVERY: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXX	
SERVICE CONTRACT NUMBER 14-029WVY			
PORT OF LOADING BOSTON, MA			
PORT OF DISCHARGE ALGER, ALGERIA			
PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE - See Clause 14			
Container Numbers, Seal Numbers and Marks CAXU9826278 49 HCP CUBE SEAL NUMBER: UL8517422	Description of Packages and Goods (Continued on attached Sea Waybill Rider pages), if applicable continued from Carrier's Agent Endorsements Reekers containers: 3 days free time (from plugging date) Demurrage: From 4th day US 16th day USD 25/20/RE - USD 110/40/RE21R - From 16th day onwards USD 110/20/RE - USD 230/40/RE21R 1 UNPACKED OR UNPACKAGED OF AUTOMOBILE FORD MUSTANG P8A, COUPE YEAR 2014 VIN: 1ZVBP8AM0E5317835 SHIPMENT REFERENCE NUMBER: 038CHS1170655A AES ITN#: X20140815402522 SHIPPER'S LOAD, STOW, AND COUNT BATTERY HAS BEEN DISCONNECTED AND GAS TANK DRAINED X20140915402522 TOTAL NUMBER OF PACKAGES: 1	Gross Cargo Weight 1,550,000 KGS. 3,417.165 LBS. TOTAL : 1,550,000 KGS 3,417.165 LBS	Measurement
FREIGHT & CHARGES Cargo shall not be delivered unless Freight & charges are paid (see Clause 16). RECEIVED by the Carrier from the Shipper in approved good order and condition unless otherwise stated herein the total number of quantity of containers or other packages or units indicated in box entitled "Carrier's Receipt" for carriage subject to as the term hereof from the Place of Receipt or the Port of Loading, to the Port of Discharge or Place of Delivery, whichever is applicable. IN ACCEPTING THIS SEA WAYBILL THE SHIPPER EXPRESSLY ACCEPTS AND AGREES TO, ON HIS OWN BEHALF AND ON BEHALF OF THE CONSIGNEE, THE OWNER OF GOODS AND THE MERCHANT, AND WARRANTS HE HAS AUTHORITY TO DO SO, ALL THE TERMS AND CONDITIONS WHETHER PRINTED, STAMPED OR OTHERWISE INCORPORATED ON THIS AND ON THE REVERSE SIDE AND TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF AS IF THEY WERE ALL SIGNED BY THE SHIPPER. Unless instructed otherwise in writing by the Shipper delivery of the Goods will be made only to the Consignee or his authorized representatives. This Sea Waybill is not a document of title to the Goods and delivery will be made, after payment of any outstanding Freight and charges, only on provision of proper proof of identity and of authorization at the Port of Discharge or Place of Delivery, as appropriate, without the need to produce or surrender a copy of this Sea Waybill. IN WITNESS WHEREOF the Carrier, Master or their Agent has signed this Sea Waybill.			
DECLARED VALUE (only applicable if Ad Valorem Charges paid - see Clause 7.3) XXXXXXXXXXXXXXXX		CARRIER'S RECEIPT (No. of Cntrs or Pkgs recd by Carrier - see Clause 14.1) 1 cntr	
PLACE AND DATE OF ISSUE NEW YORK - 30-SEPTEMBER-2014		SHIPPED ON BOARD DATE 30-SEPTEMBER-2014	
SIGNED By MSC (USA) Inc. as Agent on behalf of the Carrier MSC Mediterranean Shipping Company S.A.			